May 26, 2006

DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS OF LA PRADERA ESTATES

318143DH

THIS DECLARATION is made on the date hereinafter set forth by Pioneer Title Agency, Inc., an Arizona corporation, as Trustee, of Trust #318143, hereinafter referred to as "Declarant".

WITNESSETH:

WHEREAS, Declarant is the owner of certain property in Cochise County, Arizona which is mor particularly described as:

Lots 1-26 of La Pradera Estates, a subdivision of Cochise County, Arizona according to the map and plat of record in the office of the Cochise County. Recorded in Book 15 of Maps and Plats, Page 58 and 58A.

WHEREAS, Lots 1-26 of La Pradera Estates, a subdivision of Cochise County, Arizona, are subject to the provisions of the Master Declaration of Covenants, Conditions and Restrictions, Assessments, Charges, Servitudes, Liens, Reservations and Easements for 3 Canyons Ranch ("3 Canyons Conditions, Covenants and Restrictions") and Master Design Committee Guidelines ("3 Canyons Guidelines") and Master Design Committee Guidelines ("3 Canyons Guidelines").

NOW, THEREFORE, Declarant hereby declares that all of the Properties described above shall be held, sold and conveyed subject to the following easements, restrictions, covenants, and conditions, which are for the purpose of protecting the value and desirability of, and which shall run with, the Properties and be binding on all parties having any right, title or interest in the Properties or any part thereof, their heirs, successors and assigns, and shall inure to the benefit of each Owner thereof.

ARTICLE I
DEFINITIONS

Section 1. "Association" shall mean and refer to La Pradera Homeowners Association, Inc., an Arizona non-profit corporation, its successors and assigns.

Section 2. “Members” shall mean and refer to those who are members of the Association under the bylaws of the Association.

Section 3. “Owner” shall mean and refer to the record owner, whether one or more persons or entities, of a fee simple title to any Lot which is a part of the Properties, including contract sellers. Excluding those having such interest merely as security for the performance of an obligation.

Section 4. “Properties” shall mean and refer to that certain real property hereinbefore described, and such additions thereto as may hereafter be brought within the jurisdiction of the Association.

Section 5. “Common Area” shall mean all real property (including the improvements thereto) owned by the Association for the common use and enjoyment of the owners.

Section 6. “Lot” shall mean and refer to any plot of land shown upon any recorded subdivision map of the Properties with the exception of the Common Area.

Section 7. “Declarant” shall mean and refer to Pioneer Title Agency, Inc., as Trustee of Trust #318143, its successors and assigns if such successors or assigns should acquire more than one undeveloped Lot from Declarant for the purpose of development.

Section 8. “3 Canyons Master Association” shall mean 3 Canyons Ranch Master Homeowners Association. 3 Canyons Master Association is the overall entity that governs the entire 3 Canyons Ranch Development, of which La Pradera Estates Subdivision is a portion. Each and every member of the Association shall also be a member of the 3 Canyons Master Association.

Section 9. “3 Canyons Covenants, Conditions and Restrictions” shall mean the Master Declaration of Covenants, Conditions and Restrictions, Assessments, Charges, Servitude, Liens, Reservations and Easements for 3 Canyons Rach as recorded on October 5, 1995, at FEE 951024838, as may be amended from time to time in the records of Cochise County, Arizona. All of the 3 Canyons Covenants, Conditions and Restrictions shall apply to the Properties and to the Owners of each Lot.

Section 10. “3 Canyons Guidelines” shall refer to 3 Canyon Ranch Homeowners Association Master Design Committee Guidelines. All of the 3 Canyons Guidelines shall apply to the Properties and to the Owner of each Lot.

Article II
Property Rights

Section 1. Owners Easements of Enjoyment. Every owner shall have a right and easement of enjoyment in and to the Common Area which shall be appurtenant to and shall pass with the title to every Lot, subject to the right of the Association to suspend the voting rights

and right to use of the recreational facilities by an Owner for any period during which any assessment against his Lot remains unpaid, and for a period not to exceed 60 days for any infraction of its published rules and regulations.

Section 2. Delegation of Use. Any Owner may delegate, in accordance with the Bylaws, his right of enjoyment to the Common Area and Facilities to the members of his family, his tenants, or contract purchasers who reside on the Owner's Lot.

ARTICLE III
MEMBERSHIP AND VOTING RIGHTS

Section 1. Members. Every Owner of a Lot which is subject to assessment shall be a member of the Association. Membership shall be appurtenant to and may not be separated from ownership of any Lot which is subject to assessment.

Section 2. Classes of Membership. The Association shall have two classes of voting membership:

Class A. Class A members shall be all Owners, with the exception of the Declarant, and shall be entitled to one vote for each Lot owned. When more than one person holds an interest in any Lot, all such persons shall be members. The vote for such Lot shall be exercised as they determine, but in no event shall more than one vote be cast with respect to any Lot.

Class B. Class B member shall be the Declarant and shall be entitled to four (4) votes for each Lot owned. The Class B membership shall cease and be converted to Class A membership on the happening of either of the following events, whichever occurs earlier.

(a) When the total votes outstanding in the Class A Membership equal the total votes outstanding in the Class B membership, or
(b) On January 1, 2010

ARTICLE IV
COVENANT FOR MAINTENANCE ASSESSMENTS

Section 1. Creation of a Lien and Personal Obligation for Assessments. The Declarant, for each Lot owned within the Properties, hereby covenants, and each Owner of any Lot by acceptance of a deed therefore, whether or not it shall be so expressed in such deed, is deemed to covenant and agree to pay to the Association: (1) annual assessments or charges, and (2) special assessments for capital improvements, such assessments to be established and collected as hereinafter provided. The annual and special assessments, together with interest, costs, and reasonable attorney's fees, shall also be the personal obligation of the person who was the Owner of such Lot at the time when

the assessment fell due. The personal obligation for delinquent assessments shall not pass to his successors in title unless expressly assumed by them.

Section 2. Purpose of Assessments. The assessments levied by the Association shall be used exclusively to promote the recreation, health, safety, and welfare of the residents in the Properties and for the improvement and maintenance of the Common Area.

Section 3. Maximum Annual Assessment. Until January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum annual assessment shall be Five Hundred Dollars ($50.00) per lot. However, this does not include the fee of the 3 Canyons Master Association which shall be in accordance with the 3 Canyons Master Association Bylaws.

(a) From and after January 1 of the year immediately following the conveyance of the first Lot to an Owner, the maximum annual assessment may be increased each year not more than 5% above the maximum assessment for the previous year without a vote of the Members

(b) From and after January 1 of the year immediately following the Conveyance of the first Lot to an Owner, the maximum annual Assessment may be increased above 5% by a vote of two-thirds (2/3) of the Members who are voting in person or by proxy, at a meeting duly called for this purpose.

(c) The Board of Directors may fix the annual assessment at an Amount not in excess of the maximum.

Section 4. Special Assessments for Capital Improvements. In addition to the annual assessments authorized above, the Association may levy, in any assessment year, a special assessment applicable to that year only for the purpose of defraying, in whole or in part the cost of any construction reconstruction, repair or replacement of a capital improvement upon the Common Area, including but not limited to complete maintenance of all internal roadways, drainage systems, monumentation, fixtures and personal property related thereto, provided that any such assessment shall have the assent of two-third (2/3) of the votes of the Members who are voting in person or by proxy at a meeting duly called for this purpose.

Section 5. Notice and Quorum for Any Action Authorized Under Sections 3 and 4. Written notice of any meeting called for the purpose of taking any action authorized under Section 3 or Section 4 shall be sent to all Members not less than 30 days nor more than 60 days in advance of the meeting. At the first such meeting called, the presence of Members or of proxies entitled to cast sixty percent (60%) of all the votes of both classes of membership shall constitute a quorum. If the required quorum is not present, another meeting may be called subject to the same notice requirement, and the required quorum at the subsequent meeting shall be one-half of the required quorum at the preceding meeting. No such subsequent meeting shall be held more than 60 days following the preceding meeting.

Section 6. Uniform Rate of Assessment. Both annual and special assessments must be fixed at a uniform rate for all Lots and may be collected on a monthly basis or on such other schedule as the Association determines.

Section 7. Date of Commencement of Annual Assessments: Due Dates. The annual assessments provided for herein shall commence as to all Lots on the first day of the month following the conveyance of the Common Area. The first annual assessment shall be adjusted according to the number of months remaining in the calendar year. The Board of Directors shall fix the amount of the annual assessment against each lot at least thirty (30) days in advance of each annual assessment period. Written notice of the annual assessment shall be sent to every Owner subject therein. The due dates shall be established by the Board of Directors. The Association shall, upon demand, and for reasonable charge, furnish a certificate signed by an officer of the Association setting forth whether the assessments on a specific Lot have been paid. A properly executed certificate of the Association as to the status of assessments on a Lot is binding upon the Association as of the date of its issuance.

Section 8. Effect of Nonpayment of Assessments: Remedies of the Association. Any assessment not paid within thirty (30) days after the due date shall bear interest from the due date at the rate of ten (10%) percent per annum. The Association may bring an action at law against the Owner personally obligated to pay the same, or foreclose the lien against the Lot. No Owner may waive or otherwise escape liability for the assessments provided for herein by non-use of the Common Area or abandonment of his lot.

Section 9. Subordination of the Lien to Mortgages. The lien of the assessments provided for herein shall be subordinate to the lien of any first mortgage. Sale or transfer of any Lot shall not affect the assessment lien. However, the sale or transfer of any Lot pursuant to mortgage foreclosure or any proceeding in lieu thereof, shall extinguish the lien of such assessments as to payments which became due prior to such sale or transfer. No sale or transfer shall relieve such Lot from liability for any assessment thereafter becoming due or from the lien thereof.

Section 10. Pass Thru of 3 Canyons Master Association Fees. At the discretion of the Association and in conjunction with the 3 Canyons Master Association, the Association may collect all fees required by all Owners for a combined payment to the 3 Canyons Master Association. 3 Canyons Master Association Fees may be collected from all Owners and held in an escrow account until the 3 Canyons Master Association fees are due. At that time, a block payment of all Owners' 3 Canyons Master Association dues will be made.

ARTICLE V
ARCHITECTURAL CONTROL & USE RESTRICTIONS

Section 1. Control and Use. The 3 Canyons Covenants, Conditions and Restrictions and the 3 Canyons Guidelines shall apply to the Properties and each Lot, unless more restrictive covenants,

conditions and restriction or design guidelines are adopted by the Association, in which case the Association provision shall govern.

Section 2. Village Architectural Committee. As provided in paragraph 17 of the 3 Canyons Guidelines, a Village Architectural Committee may be established by the Association after control of the Association is transferred from the Declarant to an Association Board of Directors composed exclusively of Owner other than the Declarant or its successors or assigns. Approval of the Village Architectural Committee shall be submitted to 3 Canyon Master Association.

Section 3. Size and Height Restrictions. Homes to be constructed must meet a minimum size of 2,500 square feet of living area and be single story in height.

Section 4. Animals. Horse and farm animals will not be permitted. Domestic pets must conform to all leash and other laws.

ARTICLE VI
ANNEXATION

The 79 acres directly North of La Pradera Estates, but still within the original NE ¼ section of the section 21 of 3 Canyons, will be developed in the future. This coming Village will have access and entry off Silver Concho Way and La Pradera Road for admission to its homes, lots and building sites. This future development will share in any maintenance costs associated with the use of those roads and common areas. In the future, this Village may elect to join the Association with permission of the Association as provided in Section 4 of Article VII of this Declaration.

ARTICLE VII
GENERAL PROVISIONS

Section 1. Enforcement. The Association, or any Owner, shall have the right to enforce, by an proceeding at law or in equity, all restrictions, conditions, covenants, reservations, liens, charges and design guidelines now or hereafter imposed by the provisions of this Declaration, by Design Guidelines adopted by the Association, by the 3 Canyons Covenants, Conditions and Restriction or by the 3 Canyons Guidelines. Failure by the Association or by any Owner to enforce any such provision shall in no event be deemed a waiver of the right to do so thereafter.

Section 2. Severability. Invalidation of any provision of this Declaration by judgment or court order shall in no way affect any other provisions which shall remain in full force and effect.

Section 3. Amendment. The covenants and restrictions of this Declaration shall run with and bind the Properties and all of the Lots, for a term of twenty (20) years from the date this Declaration is recorded, after which time they shall be automatically extended for successive periods of ten (10) years. This Declaration may be amended during the first twenty (20) year period by an instrument

signed by not less than ninety percent (90%) of the Lot Owners, and thereafter by an instrument signed by not less than seventy-five percent (75%) of the Lot Owners. Any amendment must be recorded.

Section 4. Annexation. Additional residential property and Common Area may be annexed to the Properties with the consent of a two-thirds (2/3) vote of the of Members. The approval of any subdivision within an annexed property must be approved by the Board of 3 Canyons Master Association in order to be effective.

Section 5. Approval by Master Association. This Declaration and the Articles of Incorporation and Bylaws for the Association must be approved by the Board of the 3 Canyons Master Association in order to be effective and may not be amended, supplemented, or terminated without the prior written consent of the 3 Canyons Board of the Master Association.

Section 6. Control by Master Association. The 3 Canyons Master Association shall have the right to take control of the Association as provided in Section 14.7 of the 3 Canyons Covenants, Conditions and Restrictions, in the even the Association is failing to levy or collect assessments in the opinion of the 3 Canyons Master Association Board of Directors, to perform its functions and duties in an amount sufficient to pay its obligations to the 3 Canyons Master Association or otherwise failing in the standards established by other Village Associations within the 3 Canyons Property or necessary for the maintenance of high quality of development envisions for 3 Canyons Project.

Signature Section

(See Original Document, FEE # 060520361, Cochise County Official Records)

THIS INSTRUMENT WAS RE-RECORDED AS FEE # 060726535 FOR THE SOLE PURPOSE OF INSERTING THE PLAT MAP BOOK AND PAGE

March 1, 2006

ADDENDUM TO CC&R'S FOR LA PRADERA ESTATES LLC:

ARTICLE V-Architectural Control. Section 2- Village Architectural Committee. [V.A.C]

Addendum:

All prospective home builders/owners will submit two complete sets of construction documents to the V.A.C. Set one for the village, set two for the Three Canyons Association. Within thirty days after approval by the village, V.A.C will present set two to the Three Canyons Architectural Review Committee for approval as required by the Master CC&R's. Every effort will be made to expedite the approval process by both committees and this approval is required prior to beginning excavation or construction.

Signature Section

(See Original Document, FEE # 060726535, Pima County Official Records)

Aug 14 2006

La Pradera Estates Well Maintenance Agreement

1. La Pradera Estates will consider all wells, well equipment, water lines, and pumps to be part of the common area. They will be maintained and repaired as such.
2. Call maintenance and repair of the water system, and the monthly electric service costs to run the water system, will be paid from La Pradera Village Homeowners Association funds.
3. All homeowners agree to grant access to the water system for maintenance and repair.
4. All utilities are for the common good of the Village residents, and will be repaired and maintained by La Pradera Village Homeowners Association with funds collected according to the CC&R document recorded with Cochise County.
5. This well agreement can be amended or changed by a seventy percent (70%) majority vote of La Pradera Village Homeowners Association.
6. Water Conservation is every resident's responsibility and is enforceable by La Pradera Village Homeowners Association.

Signature Section

(See Original Document, FEE # 060830473, Cochise County Official Records)

05/06/2022

AMENDMENT TO CC&RS

Amendment to CC&R's previously recorded on May 26, 2006, in Document No. 060520361 (To be inserted in the CCR at the end of Article IV and before the 2nd paragraph of Article 6) To address the change of square footage of livable space from 2,500 sq ft down to 2,000 sq ft in Article V section 3.)

Signature Section

(See Original Document, FEE # 70108952, Cochise County Official Records)